



Code: EBAC
Adopted: 7/21/21

Safety Committee

A safety committee shall be established to implement HCCS's safety program as part of an ongoing effort to help ensure the safety of students, staff and others while on HCCS property.

The administrator/principal or designee will coordinate HCCS's safety committee efforts and maintain all necessary records.

The administrator/principal will develop administrative regulations as may be necessary to implement this policy and meet the applicable Oregon Occupational Safety and Health Division requirements.

END OF POLICY

Legal Reference(s):

[ORS 654.176](#)
[ORS 654.182](#)

[ORS 338.115\(1\)\(y\)](#)

[OAR 437-001-0765](#)

Cross Reference(s):

EB - Safety Program



Code: EBAC
Adopted: 7/21/21

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[ORS 654.176](#)
[ORS 654.182](#)

[ORS 338.115\(1\)\(y\)](#)

[OAR 437-001-0765](#)

Cross Reference(s):

EB - Safety Program



Code: EBBA
Adopted: 7/21/21

First Aid**

In cases of sudden illness or injury to a student or staff member, first aid will be given by school staff. Further medical attention for a student is the responsibility of the student's parent(s), or of someone the parent(s) designate in the case of an emergency.

The administrator/principal is charged with providing for the immediate care of ill or injured persons within their area of responsibility.

Staff members shall report self-administered first-aid treatment to an immediate supervisor.

Procedures for handling health emergencies will be established and made known to staff. All employees are expected to know where first-aid supplies and equipment are kept in their work areas.

Designated employees shall hold current first-aid cards. In compliance with Oregon Administrative Rules, HCCS shall have, at a minimum, at least one staff member with a current first-aid card for every 60 students enrolled.

END OF POLICY

Legal Reference(s):

[ORS 30.800](#)
[ORS 338.115\(1\)\(y\)](#)

[OAR 437-002-0042](#)
[OAR 437-002-0120 to -0139](#)

[OAR 437-002-0161](#)
[OAR 437-002-0360](#)
[OAR 437-002-0377](#)
[OAR 581-022-2050](#)
[OAR 581-022-2220](#)

[OAR 581-022-2225](#)
[OAR 581-053-0003\(37\)](#)
[OAR 581-053-0220\(3\)\(B\)\(iii\)](#)
[OAR 581-053-0320\(5\)\(b\)](#)
[OAR 581-053-0420\(2\)\(f\)\(B\)](#)



Code: EBBB
Adopted: 7/21/21

Injury/Illness Reports

All injuries/illnesses, sustained by the employee while in the actual performance of the duty of the employee, occurring on HCCS premises, in HCCS school vehicles, at a HCCS-sponsored activity or involving staff members who may be elsewhere on HCCS business will be reported immediately to the administrator/principal or designee. All accidents involving students, visiting public or school property will be reported to the administrator/principal or designee. Staff reporting of work-related injuries/illnesses will be reported to the human resource manager who will report such instances to the director of operations. Staff receiving any reports of illness or injury from a parent or student will be reported to the administrator/principal or designee. The director of operations is designated as the safety officer.

A written report will be submitted within 24 hours to HCCS's safety officer. Reports will cover property damage as well as personal injury.

In the event of a work-related¹ illness or injury to an employee resulting in overnight hospitalization for medical treatment² other than first aid, the safety officer shall report the incident to the Oregon Occupational Safety and Health Division (OR-OSHA). This report will be made within 24 hours after notification to HCCS of an illness or injury. Fatalities or catastrophes³ shall be reported to OSHA within eight hours.

ALL injuries/illnesses sustained by an employee, while in the actual performance of the duty of the employee or by a student or visiting public will be promptly investigated. As a result of the investigation any corrective measures needed will be acted upon.

The safety officer will maintain records and reports on serious injuries/illnesses, including accidents involving HCCS property or employees, students or visiting public, and periodic statistical reports on the number and types of injuries/illnesses occurring in HCCS, as well as on the measures being taken to prevent such injuries/illnesses in the future.

¹ An injury or illness is work related if an event or exposure in the work environment caused or contributed to the condition or significantly aggravated a preexisting condition.

² Medical treatment includes managing or caring for a patient for the purpose of combatting disease or disorder. The following are not considered medical treatment: visits to a doctor or health care professional solely for observation or counseling; diagnostic procedures including administering prescription medications used solely for diagnostic purposes; and any procedure that can be labeled first aid.

³ A "catastrophe" is an accident in which two or more employees are fatally injured, or three or more employees are admitted to a hospital or an equivalent medical facility.

The records will include monthly reporting information and an analysis of the data and trends will be conducted at least annually. Such reports will be submitted to the administrator/principal for review annually.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(1\)\(y\)](#)
[ORS 339.309](#)

[OAR 437-001-0015](#)
[OAR 437-001-0700](#)
[OAR 437-001-0760](#)

[OAR 581-022-2225](#)



Code: EBB
Adopted: 7/21/21

Integrated Pest Management

To ensure the health and safety concerns of student, staff and community members, the HCCS shall adopt an integrated pest management plan (IPM)¹ which emphasizes the least possible risk to students, staff and community members and shall adopt a list of low-impact pesticides for use with the IPM plan.

The IPM plan is a proactive strategy that:

1. Focuses on the long-term prevention or suppression of pest problems through economically sound measures that:
 - a. Protect the health and safety of students and staff;
 - b. Protect the integrity of public charter school buildings and grounds;
 - c. Maintain a productive learning environment; and
 - d. Protect local ecosystem health.
2. Focuses on the prevention of pest problems by working to reduce or eliminate conditions of property construction, operation and maintenance that promote or allow for the establishment, feeding, breeding and proliferation of pest populations or other conditions that are conducive to pests or that create harborage for pests;
3. Incorporates the use of sanitation, structural remediation or habitat manipulation or of mechanical, biological and chemical pest control measures that present a reduced risk or have a low-impact and, for the purpose of mitigating a declared pest emergency, the application of pesticides that are not low-impact pesticides;
4. Includes regular monitoring and inspections to detect pests, pest damage and unsanctioned pesticide usage;
5. Evaluates the need for pest control by identifying acceptable pest population density levels;
6. Monitors and evaluates the effectiveness of pest control measures;
7. Excludes the application of pesticides on a routine schedule for purely preventive purposes, other than applications of pesticides designed to attract or be consumed by pests;
8. Excludes the application of pesticides for purely aesthetic purposes;

¹ See Integrated Pest Management Program for Oregon Schools at <http://blogs.oregonstate.edu/schoolipm/>. The program includes access to Resources & Forms including Model plans for large school districts and small school districts.

9. Includes school staff education about sanitation, monitoring, inspection and pest control measures;
10. Gives preference to the use of nonchemical pest control measures;
11. Allows the use of low-impact pesticides if nonchemical pest control measures are ineffective; and
12. Allows the application of a pesticide that is not a low-impact pesticide only to mitigate a declared pest emergency or if the application is by, or at the direction or order of, a public health official.

HCCS designates the director of operations or designee as the Integrated Pest Management Plan Coordinator give them the authority for overall implementation and evaluation of the IPM plan.

Integrated Pest Management Plan Coordinator

The IPM Plan Coordinator shall:

1. Attend not less than six hours of IPM training each year. The training shall include at least a general review of integrated pest management principles and the requirements of IPM as required by Oregon statute;
2. Ensure appropriate prior notices are given and posted warnings have been placed when pesticide applications are scheduled;
3. Oversee pest prevention efforts;
4. Ensure identification and evaluation of pest situation;
5. Determine the means of appropriately managing pest damage that will cause the least possible hazard to people, property and the environment;
6. Ensure the proper use and application of pesticide applications when non-pesticide controls have been unsuccessful;
7. Evaluate pest management results; and
8. Keep for at least four years following the application date, records of applied pesticides that include:
 - a. A copy of the label;
 - b. A copy of the Safety Data Sheet (SDS);
 - c. The brand name and U.S. Environmental Protection Agency (USEPA) registration number of the product;
 - d. The approximate amount and concentration of pesticide applied;
 - e. The location of where the pesticide was applied;
 - f. The type of application and whether the application was effective;
 - g. The name(s) of the person(s) applying the pesticide;
 - h. The pesticide applicator's license numbers and pesticide trainee or certificate numbers of the person applying the pesticide;
 - i. The dates and times for the placement and removal of warning signs; and
 - j. Copies of all required notices given, including the dates the IPM Coordinator gave the notices.

9. Respond to inquiries about the IPM plan and refer complainants to public charter Board policy KL - Public Complaints;
10. Conduct outreach to public charter school staff about HCCS's IPM plan.

END OF POLICY

Legal Reference(s):

[ORS 634.116](#)

[ORS 634.700](#) to -634.750

Cross Reference(s):

EB - Safety Program



Code: EBCB
Adopted: 7/21/21

Emergency Drills and Instruction

The administrator/principal will conduct emergency drills in accordance with the provisions of Oregon Revised Statutes.

HCCS is required to instruct and drill students on emergency procedures so that students can respond to emergencies without confusion and panic. The emergency procedures shall include instruction and drills on fires, earthquakes, and safety threats. Instruction and drills on fires, earthquakes, and safety threats for students, shall be conducted for at least 30 minutes each school month.

Fire Emergencies

HCCS will conduct monthly fire drills. At least one fire drill will be held within the first 10 days of the school year. Drills and instruction on fire emergencies shall include routes and methods of exiting the school building.

Earthquake Emergencies

At least two drills on earthquakes shall be conducted each year.

Drills and instruction for earthquake emergencies shall include the earthquake emergency response procedure of “drop, cover and hold on” during the earthquake. When based on the evaluation of specific engineering and structural issues related to a building, the public charter school may include additional response procedures for earthquake emergencies.

Safety Threats

At least two drills on safety threats shall be conducted each year.

Drills and instruction on safety threats shall include procedures related to lockdown, lockout, shelter in place and evacuation and other appropriate actions to take when there is a threat to student safety.

The Board may use Oregon Revised Statute (ORS 192.660(2)(k) to conduct an executive session to consider matters relating to school safety or a plan that responds to safety threats made toward the school. Local units of government and state agencies associated with emergency procedures training and planning shall review the emergency procedures and assist the school with the instruction and the conducting of drills for students in these emergency procedures.

END OF POLICY

Legal Reference(s):

[ORS 192.660\(2\)\(k\)](#)
[ORS 336.071](#)

[ORS 338.115\(1\)\(y\)](#)
[ORS 476.030\(1\)](#)

[OAR 581-022-2225](#)

OREGON STATE FIRE MARSHAL, OREGON FIRE CODE (2014).



Code: EBCD
Adopted: 7/21/21
Revised/Reviewed:

Emergency Closures**

In case of hazardous or emergency conditions, the administrator/principal may alter HCCS schedules as are appropriate to the particular condition. Such alterations include closure of school, delayed opening of school and early dismissal of students.

The administrator/principal will develop and maintain such plans and procedures as are necessary to carry out alternate school schedules.

At the beginning of each school year students, parents and staff will be informed of the procedures used to notify them in case of an emergency closure.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(1\)\(y\)](#)

[OAR 437-002-0360](#)

[OAR 437-002-0377](#)

[OAR 581-022-2225](#)

[OAR 581-022-2320](#)

[OAR 581-053-0004](#)



Code: EBC
Adopted: 7/21/21

Emergency Plans

The administrator/principal will develop and maintain a plan specifying procedures to be used in emergencies such as disorderly conduct, unlawful assembly, disturbances at school activities, natural disasters, fire, illness or injury of a student or staff member, and safety threats on school property. The administrator/principal will consult with community, law enforcement and county agencies while developing this plan.

HCCS's Emergency Procedures Plan will meet the standards of the State Board of Education.

Copies of the Emergency Procedures Plan will be available in the school office and other strategic locations throughout the school. Parents will be informed of HCCS's plan for the care of students during an emergency situation. The HCCS Board may use Oregon Revised Statute (ORS) 192.660(2)(k) to conduct an executive session to consider matters related to school safety or a plan that responds to safety threats made toward HCCS.

In the case of long-term disruption to HCCS operations as a result of a pandemic, declared public health emergency or other catastrophe, the school emergency plan shall at a minimum include the following:

1. Who is in charge of the school plan;
2. What steps the school will take to stop the spread of disease;
3. How sick students will be identified;
4. Transportation plan for sick students;
5. Disease containment measures for the district;
6. Communication plan for staff, students, parents;
7. Continuing education plan for students;
8. Procedures for dealing with student privacy rights;
9. Employee leave procedures during a pandemic or other catastrophe;
10. Employee pay and benefit plan and procedures;

11. Facility utilization by other agencies procedures;
12. Business operations plan for offsite operation or alternative measures.

END OF POLICY

Legal Reference(s):

[ORS 192.660\(2\)\(k\)](#)
[ORS 338.115\(1\)\(y\)](#)
[ORS 433.260](#)

[ORS 433.441](#)
[OAR 437-002-0161](#)

[OAR 581-022-2220](#)
[OAR 581-022-2225](#)



Code: EB
Adopted: 7/21/21

Safety Program

Safe buildings, grounds and equipment will be maintained in order to prevent accidents or injury to students, employees and others from fire, natural disasters, mechanical and electrical malfunction and other hazards.

Buildings will be planned, constructed, equipped and maintained in accordance with appropriate local, state and federal safety regulations.

Buildings will be provided with alarm systems, fire extinguishers and other safety devices required by state and federal laws and regulations.

The administrator/principal will develop and implement a safety program which will include, but not be limited to, compliance with and enforcement of all state and federal laws, rules and regulations.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(1\)\(y\)](#)
[ORS 654.003 to -654.022](#)

[OAR 437-001-0760](#)
[OAR 437-002-0020 to -0081](#)
[OAR 437-002-0100](#)

[OAR 437-002-0140](#)
[OAR 437-002-0144](#)
[OAR 437-002-0145](#)
[OAR 437-002-0180 to -0182](#)
[OAR 437-002-0260 to -0268](#)
[OAR 437-002-0360](#)

[OAR 437-002-0368](#)
[OAR 437-002-0377](#)
[OAR 437-002-0390](#)
[OAR 437-002-0391](#)
[OAR 581-022-2030](#)
[OAR 581-022-2225](#)

Fazzolari v. Portland Sch. Dist. No. 1J, 303 Or. 1 (1987).

Toxic Substances Control Act, 15 U.S.C. §§ 2601-2629 (2012); Asbestos Hazard Emergency Response Act of 1986, 15 U.S.C. §§ 2641-2656 (2012).

Cross Reference(s):

EBAC - Safety Committee
EBB - Integrated Pest Management



Code: ECAB
Adopted: 7/21/21

Vandalism, Malicious Mischief or Theft**

Students and the school community are urged to cooperate in reporting any incidents of vandalism, malicious mischief or theft and the name or names of the person or persons believed to be responsible.

Each employee will report to the administrator/principal or other person in authority incidents of vandalism, malicious mischief or theft and the name of the person or persons responsible, if known.

The administrator/principal will submit a report of any significant vandalism, malicious mischief, theft or damage to the school, to the Board.

The administrator/principal is authorized to sign a criminal complaint and to press charges against those committing acts of vandalism, malicious mischief or theft, of or against HCCS property. It is the policy of the Board to seek all legal remedies against persons found to have committed such acts. Full restitution for the damage will be sought from such persons, or, in the case of minors, from their parents. Until such fees or restitutions are paid, certain restrictions and/or penalties may be imposed. Records requested by another district or public charter school to determine a student's appropriate placement may not be withheld.

A student who willfully destroys HCCS property through vandalism, malicious mischief, theft or arson, who commits larceny or who creates a hazard to the safety of other people on HCCS property will be disciplined in accordance with state law and the Board's policy on student suspensions and expulsions and referred to law enforcement.

Any staff member who fails to report such an act, or willfully destroys HCCS property through vandalism, malicious mischief, theft or arson, who commits larceny or who creates a hazard to the safety of other people on HCCS property will be disciplined, up to and including dismissal and may be referred to law enforcement.

HCCS is not liable or responsible for personal property brought onto HCCS property.

END OF POLICY

Legal Reference(s):

[ORS 30.765](#)
[ORS 164.345](#)
[ORS 164.365](#)

[ORS 326.575](#)
[ORS 338.115\(2\)](#)

[ORS 339.270](#)
[ORS 419C.68](#)

Cross Reference(s):

JFC - Student Conduct
JN - Student Fees, Fines and Charges
JO/IGBAB - Education Records/Records of Students with Disabilities
KGB - Public Conduct on Public Charter School Property



Code: EDC/KGF
Adopted: 7/21/21

Authorized Use of School Equipment and Materials

HCCS materials and equipment will be used only for school purposes by HCCS personnel on HCCS properties.

Exceptions to this policy must be approved by the administrator/principal and authorized use shall be consistent with Oregon Revised Statute (ORS) Chapter 244.

END OF POLICY

Legal Reference(s):

[ORS Chapter 244](#)

[ORS 338.115\(2\)](#)

[OAR 584-020-0040](#)

OREGON GOVERNMENT ETHICS COMMISSION, OREGON GOVERNMENT ETHICS LAW, A GUIDE FOR PUBLIC OFFICIALS (2010).

Cross Reference(s):

KGF/EDC - Authorized Use of School Equipment and Materials



Code: EEAE-AR
Revised/Reviewed: 7/21/21

Proof of Vehicle Liability Insurance

Dear _____,

You have agreed to transport students of HCCS to a field-trip function or for some other school-approved purpose. Please be aware that in the event of an accident, your insurance will provide primary coverage. In order to serve as a driver you will be required to provide proof of vehicle liability insurance. Your insurance must meet or exceed minimum requirements as established by the state of Oregon and as set by HCCS.

Please COMPLETE the following information, providing information requested. SIGN where indicated and RETURN to the school office four working days PRIOR TO THE DATE OF THE EVENT.

Insurance Company Name: _____ Expiration Date: _____
(not agent's name)

Policy Number: _____

Policy Limits: _____

Current minimum limits are: \$25,000 per person and \$50,000 per accident for bodily injury; \$20,000 per accident for property damage; \$25,000 per person and \$50,000 per accident for uninsured motorist coverage; and \$15,000 per accident for personal injury protection.

Date of Birth: _____ Oregon Driver License No.: _____

Signature: _____ Date: _____

Name (as it appears on your driver license): _____

Address: _____

Daytime Phone: _____

Return form to business manager. If you do not have required coverage, you will not be allowed to transport students. (Insurance companies may increase coverage for specific dates.)



Code: EEAE
Adopted: 7/21/21

Student Transportation in Private Vehicle

Transportation of students will be by HCCS provided transportation or by a school employee's vehicle, properly insured, except as provided below.

Parents, employees and other designated adults may be permitted to use private vehicles to transport HCCS students other than their own on field trips or other HCCS activities if the following conditions have been met prior to the activity:

1. The administrator/principal or designee has approved the activity;
2. A permission slip signed by the student's parent(s) has been received by the administrator/principal or designee, granting permission for the student to participate in a field trip or activity and to ride in a privately-owned vehicle;
3. The parents, employee, or other adult driving the vehicle is properly licensed to drive and has provided proof of the same, and of insurance. Such insurance shall meet or exceed minimum requirements as established by the state of Oregon and as set by HCCS;
4. The vehicle contains an adequate number of seat restraints, including when applicable, a child safety system for a child who weighs less than 40 pounds, regardless of age, and the adult driver requires their use. The child safety system must elevate the person so that a safety belt or safety harness properly fits the individual and meets the minimum standards and specifications of law. A person over 40 pounds or who has reached the upper weight limit for the forward-facing car seat must use a booster seat until the person is four feet nine inches tall or age eight and the adult belt properly fits.¹ A person who is taller than four feet nine inches or eight years of age or older must be properly secured with a safety belt or harness that meets the requirements under Oregon Revised Statute (ORS) 815.055. Training in the proper installation and use of child safety system may be required. The driver is responsible for not placing children under the age of 13 in the front seat of a vehicle equipped with passenger-side air bags.

The administrator/principal will develop procedures to implement this policy.

END OF POLICY

¹ "Proper fit" means the lap belt of the safety belt or harness is positioned low across the thighs and the shoulder belt is positioned over the collarbone and away from the neck.

Legal Reference(s):

[ORS 338.115\(2\)](#)
[ORS 801.455](#)

[ORS 811.210](#)
[ORS 815.055](#)

[ORS 815.080](#)
[OAR 735-102-0010](#)

Cross Reference(s):

IICA - Field Trips and Special Events



Code: EEA
Adopted: 7/21/21

Student Transportation Services

Transportation may be provided for HCCS-sponsored field trips that are extensions of classroom learning experiences.

School buses or activity vehicles carrying students will be considered extensions of the school experience. All students using such transportation will abide by the code of conduct posted in each school bus or school activity vehicle. Violations of such code, as well as other conduct which is improper or which jeopardizes the safety of self or others, will be reported by the school bus or vehicle driver to the transportation supervisor. The transportation supervisor will, as soon as possible, inform the HCCS administrator/principal or designee of such occurrence. Violators may be denied use of transportation for a period of time as deemed proper by the HCCS administrator/principal and/or transportation supervisor.

The HCCS administrator/principal or designee shall ensure transportation officials and drivers receive notification of students having special medical or behavioral protocols identified in student records.

Aides or assistants that ride a school bus shall receive training on emergency procedures and their role in the safe transportation of all students on the bus.

The bus or vehicle driver will be responsible for the school bus or vehicle at all times from departure until return. The driver will not participate in any activities that might impair their driving abilities.

END OF POLICY

Legal Reference(s):

ORS 327.006	ORS 820.100 to -820.190	OAR 581-053-0040
ORS 332.405		OAR 581-053-0060
ORS 332.415	OAR 581-021-0050 to -0075	OAR 581-053-0070
ORS 338.145	OAR 581-022-2345	OAR 581-053-0210
ORS 343.155 to -343.246	OAR 581-023-0040	OAR 581-053-0220
ORS 343.533	OAR 581-053-0002	OAR 581-053-0230
ORS 811.210	OAR 581-053-0003	OAR 581-053-0240
ORS 811.215	OAR 581-053-0004	OAR 735-102-0010
ORS 815.055	OAR 581-053-0010	
ORS 815.080	OAR 581-053-0031	

Every Student Succeeds Act of 2015, 20 U.S.C. §§ 6315, 7912 (2012).
McKinney-Vento Homeless Assistance Act of 2001, 42 U.S.C. §§ 11431-11435 (2012).



Code: EEBB
Adopted: 7/21/21

Use of Private Vehicles for HCCS Business

The administrator/principal will develop procedures for staff use of private vehicles that will safeguard HCCS, its employees and students in matters of safety, insurance and liability.

No staff member will use a private vehicle for HCCS business, including the transportation of students, without approval in accordance with established procedures. Authorization to use a private vehicle must be obtained before actual use of the vehicle. Staff members who are authorized to use a private vehicle on HCCS business will be reimbursed in an amount established by the Board (*See* Board policy DLC and its accompanying administrative regulation).

At least two staff members must accompany a student being transported in a private vehicle.

END OF POLICY

Legal Reference(s):

[ORS 30.260 to - 30.265](#)
[ORS 338.115\(2\)](#)
[ORS 801.455](#)

[ORS 811.210](#)
[ORS 815.055](#)
[ORS 815.080](#)

[OAR 735-102-0010](#)

Cross Reference(s):

DLC - Expense and Tuition Reimbursements



Code: EHA
Adopted: 7/21/21

Health Insurance Portability and Accountability Act

The Board has determined that it meets the definition of a hybrid of covered entities¹ under the Health Insurance Portability and Accountability Act (HIPAA). As the public charter school self-administers an Internal Revenue Service Section 125 plan it meets the health plan definition under HIPAA. As a covered entity, HCCS will meet the requirements of federal law.

Accordingly, HCCS will safeguard the protected health information² of employees from use or disclosure that may violate standards and implementation specifications to the extent required by law. The electronic exchange of financial and administrative transactions related to an employee's protected health information will meet the requirements of HIPAA, including national standards for electronic transactions designed to ensure the security of health information created or received by HCCS.

The administrator/principal will designate an individual responsible for responding to HIPAA inquiries, complaints and for providing adequate notice of employee rights and school duties under the health plan provisions of the Act. Notice will include the privacy provisions of the law, and uses of employee protected health information and disclosures that may be made by HCCS.

Training will be provided to all current staff and new employees determined by HCCS to have access to the protected health information of employees. Training will be provided within a reasonable period of time after the individual's hiring, and to those employees when their duties may be impacted by a change in HCCS's policy and/or procedures.

Employees who believe their privacy rights have been violated may file a complaint in accordance with established school procedures. Complaints may also be filed directly with the U.S. Secretary of Health and Human Services. There shall be no retaliation by HCCS against any person who files a complaint or otherwise participates in an investigation or inquiry into an alleged violation of an individual's protected

¹ A "covered entity" is an entity subject to HIPAA. These include those entities defined under the Act as a health plan, health-care clearinghouse, health care provider or a hybrid entity. A hybrid of covered entities is a single legal entity that is a covered entity and whose covered functions are not its primary function. Internal Revenue Service Section 125 plans with 50 or more participants operated or maintained by public school entities are covered health plans for HIPAA privacy rule purposes. Similarly, any provider of services, a provider of medical or health services as defined in section 1861 of the Act (42 U.S.C. § 1395X(s)), and any person or organization who furnishes, bills or is paid for health care in the normal course as defined by 45 C.F.R. § 160.103 is also subject to HIPAA requirements as a health-care provider.

² Protected health information" means individually identifiable health information that is: (1) transmitted by electronic media; (2) maintained in electronic media; (3) transmitted or maintained in any other form or medium. Protected health information excludes individually identifiable health information in education records covered by the Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g, and employment records held by a covered entity in its role as employer.

privacy rights. All complaints received will be promptly investigated and documented, including their final disposition.

The administrator/principal will ensure that satisfactory assurance has been obtained from any business associate³ performing HIPAA-covered activities or functions on behalf of HCCS that the protected health information it receives from HCCS will be protected. Such assurance will be in the form of a written agreement, or may be included as a part of HCCS's contract with the business associate.

Employees in violation of this policy or procedures established to safeguard the protected health information of employees will be subject to discipline up to and including dismissal.

The administrator/principal is directed to ensure an assessment of HCCS operations is conducted to determine the extent of HCCS's responsibilities as a covered entity under HIPAA and to develop internal controls and procedures necessary to implement this policy and meet the requirements of law. The procedures shall include provisions for record keeping, documentation of HCCS's compliance efforts and appropriate administrative, technical and physical safeguards to protect employee protected health information and to ensure that any request is limited to information reasonably necessary to accomplish the purpose for which the request is made.

In the event of a change in the law that may impact this policy or established HCCS procedures, the administrator/principal shall ensure appropriate revisions are recommended for Board approval, necessary changes are implemented and notification is made to staff and others, as appropriate.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)

Health Insurance Portability and Accountability Act of 1996, 42 U.S.C. §§ 1320d to -1320d-8 (2012); 45 C.F.R. Parts 160, 164 (2016).

Family Educational Rights and Privacy Act of 1974, 20 U.S.C. § 1232g (2012); Family Educational Rights and Privacy, 34 C.F.R. Part 99 (2016).

³ A "business associate" means a person who on behalf of such covered entity or of an organized health-care arrangement in which the covered entity participates, but other than in the capacity of a member of the workforce of such covered entity or arrangement, performs or assists in the performance of: (1) a function or activity involving the use or disclosure of individually identifiable health information, including claims processing or administration, data analysis, processing or administration, utilization review, quality assurance, billing, benefit management, practice management and repricing; or (2) any other function or activity regulated by HIPAA.